

The Qualifications, Powers And Functions Of Chief Electrical Inspector And Electrical Inspectors Rules, 2006

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The Qualifications, Powers And Functions Of Chief Electrical Inspector And Electrical Inspectors Rules, 2006

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The Qualifications, Powers And Functions Of Chief Electrical Inspector And Electrical Inspectors Rules, 2006

Rule

THE-QUALIFICATIONS-POWERS-AND-FUNCTIONS-OF-CHIEF-ELECTRICAL-INSPECTOR-AND-ELECTRICAL-INSPECTORS-RULES-2006 of 2006

Published on 17 August 2006

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The Qualifications, Powers And Functions Of Chief Electrical Inspector And Electrical Inspectors Rules, 2006

Published vide G.S.R. 481(E), dated 17.8.2006, published in the Gazette of India, Ext., Pt. II, Section 3(i), dated 17.8.2006.

464.

In exercise of the powers conferred by sub-section (1) of section 162 and clause (z) of sub-section (2) of section 176 of the Electricity Act, 2003 (

36 of 2003

), the Central Government hereby makes the following rules for Qualifications, Powers and Functions of Chief Electrical Inspector and Electrical Inspectors.

1.

Short title and commencement .-(1) These rules may be called The Qualifications, Powers and Functions of Chief Electrical Inspector and Electrical Inspectors Rules, 2006.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,-

(a)

"Act" means the Electricity Act, 2003;

(b)

"Appellate Authority" in respect of an appeal against the order of an Electrical Inspector, means the Chief Electrical Inspector, and in respect of an appeal against the order of the Chief Electrical Inspector, means the Central Government;

(c)

"Section" means section of the Act;

(d)

"Inspector" means a Chief Electrical Inspector or Electrical Inspector as the case may be.

(2)

Words and expression used and not defined in these rules but defined in the Electricity Act, 2003 (36 of 2003

), shall have the meanings respectively assigned to them in that Act.

3.

Applicability of rules .-These rules shall apply in respect of following:-

(i)

a generating company wholly or partly owned by the Central Government;

(ii)

any inter-State generation, transmission, trading or supply of electricity and with respect to any mines, oil-fields, railways, national highways, airports, telegraphs, broadcasting stations and any works of defense, dockyard, nuclear power installations;

(iii)

National Load Dispatch Center and Regional Load Dispatch Center; and

(iv)

any works or electric installation belonging to the Central Government or under its control.

4.

Qualification for Chief Electrical Inspector .-No person shall be appointed to be a Chief Electrical Inspector unless-

(a)

he possesses a degree in electrical engineering or its equivalent from a recognized University or Institution; and

(b)

he has been regularly engaged for a period of at least twenty years in the practice of electrical engineering of which not less than two years has been spent in an electrical or mechanical engineering workshop or in generation or transmission or distribution of electricity, or in the administration of the Act and rules thereunder, in a position of responsibility.

5.

Qualifications for Electrical Inspectors .-(1) No person shall be appointed to be an Electrical Inspector unless-

(a)

he possesses a degree in Electrical Engineering or its equivalent from a recognized University or Institution; and

(b)

he has been regularly engaged for a period of [at least five years] in the practice of electrical engineering, of which not less than one year has been spent in an electrical or mechanical engineering workshop or in generation or transmission or distribution of electricity, or in the administration of the Act and rules thereunder, in a position of responsibility.

(2)

The person appointed as Electrical Inspector shall undergo such training as the Central Government may consider it necessary for the purpose and such training shall be completed to the satisfaction of the Government.

6.

Powers of the Chief Electrical Inspector and Electrical Inspector .-The Chief Electrical Inspector and the Electrical Inspector shall have powers to inspect the works and electrical installations in his area in respect of which, such an Inspector has been directed by the Central Government to exercise his powers and perform functions under sub-section (1) of section 162 of the Act.

7.

Powers of entry and inspection .-For carrying out inspections as referred to in rule 6 above,-

(1)

The Inspector may enter, inspect and examine any place, carriage or vessel in which he has reason to believe that there is any appliance or apparatus used in the generation, transmission, transformation, conversion, distribution or use of energy and may carry out tests therein.

(2)

Every supplier, consumer, owner and occupier shall afford all reasonable facilities to any such inspector to make such examinations and tests as may be necessary to satisfy himself as to the due observance of the safety regulations as specified by the Authority under section 53 of the Act. The Indian Electricity Rules, 1956 made under section 37 of the Indian Electricity Act, 1910 (now repealed) shall continue to be in force till the regulations under section 53 of the Act are made.

(3)

An Inspector may require a supplier of the electricity to submit to him a list of all persons supplied with energy by him, the addresses at which such energy is supplied, the month of connecting services, the voltage of supply, the connected load and the purpose of supply and the supplier shall comply with such requisitions.

(4)

Every licensee and every owner of a generating station shall, if required so to do by an Inspector, provide reasonable means for carrying out all tests, specified under the Act or regulations thereunder, of the appliances or apparatus used for the supply or use of energy by him, as the case may be.

(5)

Upon such inspection, an Inspector may serve an order, within 15 days from the date of such inspection, in the Form A, to any licensee, consumer, owner or occupier, calling upon him to comply with any specified regulation and the person so served shall thereupon comply with the order within the period specified therein, and shall report in writing to the Inspector serving the order mentioning therein as to when the order has been complied with:

Provided that, if within the period specified in the aforesaid order an appeal is filed against the order by the person on whom such order has been served, the appellate authority may suspend its operation pending the decision of the appeal.

8.

Appeals .-(1) An appeal against an order served under these rules shall lie-

(a)

if the order is served by an Electrical Inspector, to the Chief Electrical Inspector;

(b)

if the order is served by a Chief Electrical Inspector, to the Central Government.

(2)

In the case of an order of Chief Electrical Inspector on an appeal preferred to him under clause (a) of sub-rule (1), a further appeal shall lie to the Central Government.

(3)

Every appeal made under sub-rule (1) shall be in writing and shall be accompanied by a copy of the order appealed against and shall be presented within three months of the date on which such order has been served or delivered, as the case may be.

(4)

An appeal shall be disposed off within ninety days from the date of receipt of the appeal.

FORM A

Form Of Order

To

1. Whereas the installation was inspected onand whereas it appears to me that you have not complied with the rules made under sub-section (1) of section 162 and the regulations made under section 53 of the Act, in the following respect (particulars to be given where necessary) namelyyou are hereby called upon to comply with the said rule(s)/regulations(s) on or before Day ofand to report compliance in writing to me.

2. An appeal may be filed against this order under rule 8 of the aforesaid Rules, within three months of the date on which this order is served or delivered but this order must be complied with, notwithstanding such appeal, unless the appellate authority on or before the date specified in paragraph above, suspends its operation.

Dated.....

Theday of.....

.....

Signature

Chief Electrical Inspector or

Electrical Inspector

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